

Tentative Rulings

April 21, 2025

Department 44

2:30 p.m.

*****The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail after Monday's calendar. If you wish to appear on your case, telephonic appearances are strongly encouraged utilizing CourtCall. Please schedule your appearance online for Department 44 at Courtcall.com or by calling 888-882-6878 (See CourtCall link under "General Information" on the Court's website). *****

CONSERVATORSHIPS

CONSERVATORSHIP OF JEREMY ERICKSON

Case Number: 24PC-0032531

This matter is on calendar for confirmation of filing of the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, Inventory and Appraisal, and proof of service of the Notice of Filing of the Inventory and Appraisal. The Conservatorship Care Plan and Inventory and Appraisal have been filed, and are accepted by the Court. The conservator is still required to file Proof of Service of Notice of Conservatee's Rights, and proof of service of the Notice of Filing of the Inventory and Appraisal.

This matter is continued to **Monday, May 5, 2025, at 2:30 p.m. in Department 44** for Confirmation of Filing of the Proof of Service of Notice of Conservatee's Rights, and proof of service of the Notice of Filing of the Inventory and Appraisal. If the documents cannot be filed before the continued hearing date, the court may issue an Order to Show Cause Re monetary sanctions. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF GRETA GIVLER

Case Number: 23PC-0032165

This matter is on calendar for further proceedings on an Amended Petition to Address Actions of the Prior Power of Attorney, for Approval of a Reconstructed Account, and for Damages for Elder Abuse. The matter has not been properly noticed, as Lydia Giardetti is represented by counsel, and there is no proof of service on file showing service was made on the attorney of record. Respondent has also not been properly noticed. The Petition seeks monetary damages and therefore, the matter must be served on respondent in the manner for serving summons. Service by mail is insufficient to obtain jurisdiction over the respondent. The Court notes that citations previously issued for prior hearing dates, but there has never been a proof of personal service filed as to any notice or Petition on Respondent. The Court has previously raised this issue regarding obtaining jurisdiction over respondent. Finally, the Petition fails to sufficiently allege the necessary facts to warrant relief. Petitioner's allegations are based on information and that "with a reasonable opportunity for discovery the evidence will show" that Respondent wrongfully took the funds. The Court cannot grant relief without sufficient factual allegations of the underlying damages. It is likely that an evidentiary hearing will be necessary to establish the amount of damages. This matter is continued to **Monday, June 2, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Amended Petition. Petitioner shall file and timely serve a